

25STLC05445 25STLC05445

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC05445 Hearing Date: September 15, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Westlake Services, LLC dba Westlake Financial

Services' Motion for Order that Matters be Deemed Admitted; Request for Monetary Sanctions is granted. Defendant Shawn Fortune aka Shawn Michael Fortune is ordered to pay sanctions of \$775.77 to Plaintiff's counsel within 20 days' service of this order.

Analysis:

Plaintiff Westlake Services, LLC dba Westlake Financial

Services ("Plaintiff") propounded Requests for Admission, Set One, on Defendant Shawn Fortune aka Shawn Michael Fortune ("Defendant Fortune") on June 3, 2026. (Motion, Brown Decl., ¶3 and Exh. 1.) Despite Defendant's effort to meet and confer, Plaintiff had not served responses as of the filing of the instant Motion to Deem Requests for Admission, Set One, Admitted and Request for Monetary Sanctions on July 23, 2026. (Id. at ¶¶4-5 and Exh. 2.)

Plaintiff now moves for an order deeming the Requests for

Admission admitted pursuant to Code of Civil Procedure section 2033.280. There is no requirement for a prior meet-and-confer effort

before a motion to deem requests for admission can be filed. (Code Civ. Proc., § 2033.280.) Further, the motion can be brought at any time after the responding party fails to serve responses. (Code Civ. Proc., § 2033.280.) Due to Defendant Fortune's failure to timely serve verified responses and the resulting waiver of objections, Plaintiff is entitled to an order deeming the Requests for Admission admitted. (Code Civ. Proc., § 2033.280.)

The Court is required to award sanctions under the moving statute. (Code Civ. Proc., § 2033.280, subd. (c).) However, the request for sanctions is excessive given the lack of any opposition and Plaintiff's counsel's ability to appear remotely for the hearing. Plaintiff is awarded sanctions of \$775.77 based on one hour of attorney time billed at \$700.00 per hour, plus \$75.77 in filing fees. (Motion, Brown Decl., ¶6.)

Conclusion

Plaintiff Westlake Services, LLC dba Westlake Financial Services' Motion for Order that Matters be Deemed Admitted; Request for Monetary Sanctions is granted. Defendant Shawn Fortune aka Shawn Michael Fortune is ordered to pay sanctions of \$775.77 to Plaintiff's counsel within 20 days' service of this order.

Moving party to give notice.